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SUPREME COURT, U.S.

No. 97-1835

In The

Supreme Court of the United States

October Term, 1997

MARGARET BORING,

Petitioner,

vs.

THE BUNCOMBE COUNTY BOARD OF EDUCATION, *et al.*,

Respondents.

On Petition for Writ of Certiorari to the United States Court of Appeals for the Fourth Circuit

RESPONDENTS' BRIEF IN OPPOSITION

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QUESTION PRESENTED

Does the First Amendment protect a public secondary school teacher's right to participate in the makeup of the school curriculum through the selection and production of a play?

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STATEMENT OF THE CASE

For the most part, the Respondents agree that the Petitioner's "Statement of the Case" provides an accurate synopsis of the allegations contained in the Amended Complaint under the caption "Factual Background" and an accurate summary of the decisions of the courts below under the caption "Proceedings Below." Rather than recast each element of the Petitioner's Statement of the Case, the Respondents will instead note the following areas of dissatisfaction with that portion of her Petition:

A. Factual Background

- The Petitioner attempts to recast the nature of her claims rather than simply pointing the Court to the specific allegations which are at issue in this Petition. More specifically, the Petitioner alleged in her Amended Complaint only that the Respondents' actions "served to punish and retaliate against her for expressing controversial ideas through the production of the play." App. 87a, ¶ 48.

- The statement that the Petitioner "notified the principal . . . that she had selected *Independence* as the play to be performed in the competition, and he did not object" could be interpreted to mean that she showed the principal the play or told him about its content. App. 2a. The Amended Complaint, however, alleges only that the Petitioner notified her principal as to the name of the play she had chosen. App. 82a.

- The Petitioner fails to mention that in the spring of 1992, the maple stage floor in the school's new auditorium was damaged in the course of preparing the stage for a musical which the Petitioner was producing. App. 3a; 84a-85a, ¶¶ 27-33.

- The Petitioner fails to acknowledge that shortly after the stage floor episode, principal Ivey requested Petitioner's transfer to make room for an additional math teacher due to "personal conflicts resulting from actions [Petitioner] initiated during the course of this school year." App. 3a; 85a, ¶ 35.

- The Petitioner asserts that the play was performed in the state competition "as so modified" by the deletions from the script which principal Ivey required. Pet. 3. The Amended Complaint alleges only that "[t]he students performed the play." App. 83a, ¶ 24. As the spring 1992 incident with stage floor illustrates, it should not be inferred that the Petitioner followed the principal's directions with respect to performance of the play as modified.

- Petitioner's contention that "there was considerable public discussion of the transfer, including accusations that [she] was 'immoral' for having produced the play" is not relevant to the Petitioner's claims or the appropriate Question Presented. Pet. 3. Contrary to the implication of the Petition, there is no allegation that she was transferred to "mollify the opposition by a segment of the community to the ideas expressed in ["Independence".] Pet. 17. The Amended Complaint describes the "public discussion" as "including accusations that the play was obscene and that Boring was immoral," not that she was " 'immoral' for having produced the play." App. 86a, ¶ 43.

B. Proceedings Below

- The Petitioner continues to insist on challenging the rationale of the District Court's decision, which is not at issue before this Court.

- The Petitioner recites in great detail the panel decision of the Fourth Circuit, which was vacated on December 3, 1996 and is not at issue before this Court. App. 5a.

- The Petitioner gives short shrift to the majority opinion which she now asks this Court to review. In particular, she fails to acknowledge the fundamental concept underlying the majority opinion that:

> Someone must fix the curriculum of any school, public or private. In the case of a public school, in our opinion, it is far better public policy, absent a valid statutory directive on the subject, that the makeup of the curriculum be entrusted to the local school board authorities who are in some sense responsible, rather than to the teachers, who would be responsible only to the judges, had they a First Amendment right to participate in the makeup of the curriculum.

App. 13a.

- The Petitioner fails to reference the express language restricting the scope of the Fourth Circuit's decision, noting that, "The only issue in this case is whether a public high school teacher has a First Amendment right to participate in the makeup of the school curriculum through the selection and production of a play." App. 2a. *See also* App. 13a, n.2.

REASONS FOR DENYING THE WRIT

The Petition overstates the scope of the Fourth Circuit's decision and would have this Court review the Fourth Circuit's decision based on unfounded exceptions to well-established First

Amendment principles. Contrary to the assertions in the Petition, the Fourth Circuit's limited holding is consistent with relevant First Amendment jurisprudence as well as sound principles of common sense and public policy.

I.

THE SCOPE OF THE FOURTH CIRCUIT'S DECISION IS APPROPRIATELY LIMITED.

The Petitioner implies that the Fourth Circuit's decision has far reaching implications and limits a wide range of rights under the First Amendment. As noted above, however, the majority opinion clearly limits its application to the specific circumstances addressed in this case, holding that,

> The case does not concern any right a teacher might have to participate in the makeup of the curriculum of a public high school other than the right claimed here under the First Amendment.

App. 13a, n.2. The extent of the Fourth Circuit's decision is expressly limited to the proposition that a public secondary school teacher does not have a First Amendment right to "participate in the makeup of the school curriculum through the selection and production of a play." App. 2a.

The Petitioner contends that the Fourth Circuit's decision is inconsistent with her rights under the First Amendment. The First Amendment, however, provides only that, "Congress shall make no law . . . *abridging* the freedom of speech." U.S. Const., Amdt. 1 (emphasis added). The limited holding of the Fourth Circuit does not "abridge" the rights of teachers to speak out as private citizens. Whether the Petitioner's concern in the present case was with a curriculum which she viewed as overly restrictive or

with the issues of lesbianism and illegitimacy raised in *Independence*, she was as free as any other citizen of the community to express her views, for example in a statement or presentation to the Superintendant or Board of Education about what materials she should be permitted to use.

In this sense, the Fourth Circuit's restriction on a public school teacher's classroom speech is no different from the restrictions on Title X employees established in *Rust v. Sullivan*, 500 U.S. 173 (1991):

> Individuals who are voluntarily employed for a Title X project must perform their duties in accordance with the regulation's restrictions on abortion counseling and referral. The employees remain free, however, to pursue abortion-related activities when they are not acting under the auspices of the Title X project. The regulations, which govern solely the scope of the Title X project's activities, do not in any way restrict the activities of those persons acting as private individuals. The employees' freedom of expression is limited during the time that they actually work for the project; but this limitation is a consequence of their decision to accept employment in a project, the scope of which is permissibly restricted by the funding authority.

500 U.S. at 198-199.

II.

THE FOURTH CIRCUIT'S DECISION IS CONSISTENT WITH BASIC PRINCIPLES GOVERNING A PUBLIC EMPLOYEE'S RIGHTS UNDER THE FIRST AMENDMENT.

1. The majority opinion of the *en banc* court below, as well as Judges Luttig and Wilkinson in their respective concurrences, relied heavily on this Court's decision in *Connick v. Myers*, 461 U.S. 138 (1983), which established a threshold test for determining whether a public employee's speech is entitled to the protection of the First Amendment. Under *Connick*, a public employee's speech is entitled to First Amendment protection only where the employee speaks as a private citizen on a matter of public concern.

As Judge Luttig explained in his concurrence, the *Connick* model provides a useful framework for determining whether the allegations contained in the Petitioner's Amended Complaint even give rise to a claim under the First Amendment, noting that,

> the analogy would seem to be pure between a teacher who, *qua* teacher, attempts to assert her own views through the curriculum itself, and any other public employee who, *qua* employee, attempts to assert her personal views through the official policies and decision of her office.

App. 16a. The Petitioner's alleged expression of unpopular views through curricular materials of her own choice therefore did not satisfy the threshold test under *Connick* and was not entitled to First Amendment protection.

2. The Petitioner's position, like that of the dissenters in the Fourth Circuit, rests on the erroneous assumption — contrary to

Connick — that anything she said in the context of a classroom was entitled to some degree of First Amendment protection merely because it satisfied a colloquial definition of being a matter of "public concern." This Court has never recognized such an exception to the threshold requirement of *Connick* based solely on the nature of the employee's position. If this assumption were accurate, then every public employee whose position necessarily entails matters of general interest to the public would be entitled to First Amendment protection for all speech in the context of her job, an outcome which would fly directly in the face of *Connick's* threshold test.

The Petitioner mistakenly relies on the broad language of dicta from *Keyishian v. Board of Regents*, 385 U.S. 589 (1967) as support for the proposition implicit in her Petition that teachers are entitled to greater First Amendment protection than other public employees. In *Bishop v. Aronov*, 926 F.2d 1066 (11th Cir. 1991), the Eleventh Circuit put *Keyishian*'s dicta in perspective:

> *Keyishian* dealt with that brand of regulation most offensive to a free society: loyalty oaths. The pronouncement about academic freedom in that context, however, cannot be extrapolated to deny schools command of their own courses. . . . Though we are mindful of the invaluable role academic freedom plays in our public schools, particularly at the post-secondary level, we do not find support to conclude that academic freedom is an independent First Amendment right. And, in any event, we cannot supplant our discretion for that of the University. Federal Judges should not be ersatz deans or educators.

926 F.2d at 1075.

Even Justice Brennan, who authored the oft-cited dicta in *Keyishian*, later acknowledged the significance of the distinction between the university context (as in *Keyishian*) and public secondary schools, noting that:

> The State exerts great authority and coercive power through mandatory attendance requirements, and because of the students' emulation of teachers as role models and the children's susceptibility to peer pressure.[5]
>
> [5] The potential for undue influence is far less significant with regard to college students who voluntarily enroll in courses.

Edwards v. Aguillard, 482 U.S. 578, 584; 584, n.5 (1987).

Justice Brennan further indicated in *Edwards* that his sweeping rhetoric regarding "academic freedom" would not apply in the secondary school context, explaining that:

> [I]n the State of Louisiana, courses in public schools are prescribed by the State Board of Education and teachers are not free, absent permission, to teach courses different from what is required. [citation to record omitted] "Academic freedom," at least as it is commonly understood, is not a relevant concept in this context.

Id. at 586, n.6.

3. If a distinction may be drawn between the First Amendment rights of public secondary school teachers and other public employees at all, secondary school teachers are subject to greater restrictions. For example, in *Bethel School District v. Fraser*, 478 U.S. 675 (1986), this Court held:

> Surely it is a highly appropriate function of public school education to prohibit the use of vulgar and offensive terms in public discourse. . . . Nothing in the Constitution prohibits the states from insisting that certain modes of expression are inappropriate and subject to sanctions. The inculcation of these values is truly the "work of the schools." [citations omitted] The determination of what manner of speech in the classroom or in school assembly is inappropriate properly rests with the school board.

Id. at 682-683.

Similarly, in *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260 (1988), this Court held:

> Educators are entitled to exercise greater control . . . over . . . expressive activities that students, parents, and members of the public might reasonably perceive to bear the imprimatur of the school . . . to assure that participants learn whatever lessons the activity is designed to teach, that readers or listeners are not exposed to material that may be inappropriate for their level of maturity, and that the views of the individual speaker are not erroneously attributed to the school.

Id. at 273.

In subjecting the Petitioner to at least the same limitations on First Amendment protection as other public employees, the Fourth Circuit' decision is therefore consistent with established law.

4. The Petitioner contends that this case is similar in some respects to *Board of Education v. Pico*, 457 U.S. 853 (1982). The plurality decision in *Pico*, however, by its own terms does

not apply to the question before the Court in this case. The plurality in *Pico* specifically held that:

> [A]s this case is presented to us, it does not involve textbooks, or indeed any books that Island Tree students would be required to read. [footnote omitted] Respondents do not seek in this Court to impose limitations upon their school Board's discretion to prescribe the curricula of the Island Trees schools. On the contrary, the only books at issue in this case are *library* books, books that by their nature are optional rather than required reading. Our adjudication of the present case thus does not intrude into the classroom, or into the compulsory courses taught there.

457 U.S. at 861-862 (emphasis in original.)

To the extent the *Pico* decision even addresses the issue of a school board's discretion to control the curriculum in a public secondary school, it is consistent with the Fourth Circuit's decision in this case. Contrasting the board's discretion to control the curriculum with the discretion to remove books from the library, this Court held:

> Petitioners might well defend their claim of absolute discretion in matters of *curriculum* by reliance upon their duty to inculcate community values. But we think that petitioners' reliance upon that duty is misplaced where, as here, they attempt to extend their claim of absolute discretion beyond the compulsory environment of the classroom. . . .

Id. at 869 (emphasis in original.)

5. The Petitioner acknowledges that recent decisions of this Court establish that where the government itself is the speaker, it may determine what the message shall or shall not be. *See Rust*; *Rosenberger v. Rector & Visitors*, 515 U.S. 819 (1995); *National Endowment of the Arts v. Finley*, __ U.S. __ (June 25, 1998). Pet.15. The Petitioner suggests that this principle may not apply to the context of public education, but with regard to a public university this Court specifically concluded in *Rosenberger* that:

> When the University determines the content of the education it provides, it is the University speaking, and we have permitted the government to regulate the content of what is or is not expressed when it is the speaker or when it enlists private entities to convey its own message.

515 U.S. at 833. Similarly, when a public school teacher presents "the content of the education" which the school provides, it is the school speaking, and the local board of education may regulate the content of what is or is not expressed. The limited holding of the Fourth Circuit that the First Amendment did not protect the Petitioner's right to select the curriculum was merely another way of stating the principle articulated in *Rust* and reaffirmed in *Rosenberger*.

The principles of *Rust* and *Rosenberger* work hand-in-hand with the threshold test in *Connick* as set forth above. More specifically, where a public employee's speech represents the speech of the governmental employer, it necessarily follows that it is not speech in her capacity as a private citizen on a matter of public concern. It therefore does not satisfy the threshold requirement of *Connick* and is not protected by the First Amendment.

III.

THE FOURTH CIRCUIT PROPERLY DECLINED TO ADDRESS THE PETITIONER'S CONTENTION THAT THE FIRST AMENDMENT GUARANTEED "NOTICE" THAT HER SPEECH WAS PROSCRIBED.

The petitioner submits that the decision of the court below rules out any requirement of fair notice where what she contends is "speech" involving the curriculum is concerned, calling into question the application of *Keyishian*. This position overstates both the holding of the Fourth Circuit, and, as noted above, the significance of *Keyishian*. The Fourth Circuit did not even address the merits of the Petitioner's contention that the First Amendment, at least as it pertains to teachers, includes a requirement of notice as to precisely what speech is prohibited. Instead, it merely noted that,

> Plaintiff's contention that she was not given notice as to what was being proscribed is, of course, without merit, the plaintiff having no First Amendment right to participate in the makeup of the curriculum.

App. 13a. This logical conclusion hardly calls into doubt any established principles of constitutional jurisprudence. The Petitioner's contention puts the proverbial cart before the horse, seeking to impose a requirement of notice under the First Amendment to protect a public employee from the potential consequences of expression which the First Amendment does not even protect.[1]

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1. The only claim preserved in the Petitioner's appeal was her free speech claim under the First Amendment. As alleged in the Amended Complaint, this claim is based solely on the defendants' alleged retaliation against her for the expression of "controversial ideas" through the production of the play. The Petitioner might now (Cont'd)

CONCLUSION

For above-stated reasons, the Court should deny the Petition for Certiorari.

Respectfully submitted,

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(Cont'd)
contend that she has alleged facts sufficient to form the basis of a claim for insufficient notice; however, even *Ward v. Hickey*, 996 F.2d 448 (1st Cir. 1993), on which the petitioner relies at p.17 of her Petition, reveals that an inadequate notice claim must be pled separately. The Petitioner has already amended her Complaint once in this case and still failed to include a claim of inadequate notice. Further, the Petitioner initially alleged a due process claim, but she did not appeal the dismissal of that claim.